

Investor Education and Protection Fund Authority (Form of Annual Statement of Accounts) Rules, 2018

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[Rule](#)

[INVESTOR-EDUCATION-AND-PROTECTION-FUND-AUTHORITY-FORM-OF-ANNUAL-STATEMENT-OF-ACCOUNTS-RULES-2018 of 2018](#)

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[Investor Education and Protection Fund Authority \(Form of Annual Statement of Accounts\) Rules, 2018](#)

[Published vide Notification No. G.S.R. 1023\(E\), dated 11.10.2018](#)

[G.S.R. 1023\(E\). - In exercise of the powers conferred by sub-section \(11\) of section 125 read with section 469 of the Companies Act, 2013 \(](#)

[18 of 2013](#)

[\), the Central Government hereby makes the following rules, namely : -](#)

[1.](#)

Short title and commencement.

(1)

These rules may be called the Investor Education and Protection Fund Authority (Form of Annual Statement of Accounts) Rules, 2018.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless context otherwise requires, -

(a)

"Act" means the Companies Act, 2013 (

18 of 2013

);

(b)

"Authority" means the Investor Education and Protection Fund Authority constituted under subsection (5) of section 125 of the Act;

(c)

"Form" means the Form annexed to these rules;

(d)

"Fund" means the Investor Education and Protection Fund established under sub-section (1) of section 125 of the Act;

(e)

"investor" means any person, who has invested money in shares or debentures, bond or deposits under a scheme or plan of a company registered under the Act;

(f)

"Schedule" means the Schedule to the Form annexed to these rules;

(g)

"year" means the financial year beginning on 1st April and ending on 31st March of the year immediately following.

(2)

Words and expressions used herein and not defined but defined in the Act shall have the same meanings assigned to them in the Act.

3.

Forms of Financial Statements.

(1)

The Authority shall maintain its accounts in the Form of financial statements annexed to these rules.

(2)

The Authority shall follow the instructions and accounting principles for maintaining the financial statements issued or laid down by the Central Government from time to time.

(3)

The financial statements shall give a true and fair view of the State of affairs of the Authority and shall comply with the Accounting Standards notified under section 133 of the Act.

4.

Incurring of Expenditure by the Authority.

- The officer of the Authority incurring or authorising expenditure from the Fund shall follow the Standards of financial propriety and the General Financial Rules, 2017.

5.

Annual Statement of Accounts.

(1)

At the end of a period of twelve months ending with 31st March of every year, the Authority shall prepare the following financial statements along with Schedules, as required, notes on accounts and significant accounting policies in accordance with the notes and instructions for compilation of financial statements prescribed by Government of India,

Ministry of Finance, Controller-General of Accounts as modified and annexed to these rules:

- (i)
balance sheet,
- (ii)
income and expenditure Account,
- (iii)
receipt and payment Account.

(2)

The balance sheet, income and expenditure account and receipt and payment account and the Schedules referred to in sub-rule (1), shall be approved and adopted by the Authority or a Committee authorised by the Authority on its behalf and for the purpose of authentication, the same shall be signed by the Chairperson and one Member of the Authority.

(3)

The approved accounts of the Authority shall be forwarded to the Comptroller and Auditor-General of India or any other person appointed by him on his behalf within the period of three months after the expiry of the year for the purposes of audit.

(4)

The annual accounts of the Authority, as certified by the Comptroller and Auditor General of India or any other person appointed by him on his behalf, alongwith the audit report thereon after adoption by the Authority shall be forwarded to the Central Government for laying before both the Houses of Parliament.

6.

Maintenance of Accounts etc.

- The Authority shall preserve the balance sheet, income and expenditure account, Schedules to the above statements and the receipt and payment account referred to in sub-rule (1) of rule 5 for a minimum period of eight years, following the year to which they relate.

Form of Financial Statements

[see rule 3]

Name of Entity:

Investor Education and Protection Fund Authority

Balance Sheet As At _____

(Amount Rs.)

Fund and Liabilities

Schedule

Current Year

Prev. Year

Corpus/Capital Fund

I

Reserves and Surplus

II

Earmarked/Endowment Funds

III

Secured Loans and Borrowings

IV

Unsecured Loans and Borrowings

V

Deferred Credit Liabilities

VI

Current Liabilities and Provisions

VII

Total

Assets

Fixed Assets

VIII

Investments - From Earmarked/Endowment Funds of
Authority

IX

Investments - Others

X

Current Assets, Loans and Advances

XI

Miscellaneous Expenditure (to the extent not
written off or adjusted)

Total

Significant Accounting Policies

XXII

Contingent Liabilities and Notes on Accounts

XXIII

Investor Education and Protection Fund Authority

Chairperson CEO

Place: Delhi Date

Receipt And Payment For The Period/year Ended _____

[see rule 5]

(Amount - Rs)

Receipts

Current Year

Previous Year

Payments

Current Year

Previous Year

I. Opening Balances

1. Expenses

(a) Cash in Hand

(b) Bank Balance expenses

(a) Establishment (corresponding to Schedule XVI

II)

(i) In Current Accounts

(b) Administrative Expenses (Corresponding to
Schedule XIX)

(ii) In Deposit Accounts

II. Payment made against funds for various
projects

(iii) Saving Accounts

II. Grants Received

(Name of the fund or project should be shown
along with the particulars of payment made for each project

(d) From Government of India

(e) From State Government

(f) From Other

Sources (Details)

(Grants for Capital and Revenue Expenditure to
be shown separately)

III. investments Deposits Made

a) Out of Earmarked /Endowment funds

III Income on Investment form

(Investment-other)

(a)

Earmarked/Endow

Funds

(b) Own Funds (Other Fixed Assets &

investments)

IV. Expenditure on Capital Work-in- Progress

IV. Interest

Received

(a) Purchase of fixed Assets

(i) On Bank deposits

(b) Expenditure on Capital Work-in- Progress

(ii) Loans, advance etc.

V. Refund of surplus

money/Loans

a) To the

Government of India

V. Other Income (Specify)

b) To the State

Government

c) To other

providers of funds

VI) Finance Charges (Interest)

VI. Amount Borrowed.

VII) Other Payments

(Specify)

VIII. Closing Balances

VII. Any other receipts (give details)

a) Cash in Hand

b) Bank Balances

(i) In Current Accounts

(ii) In Deposit Accounts

(iii) Savings Accounts

Total

Total

Investor Education and Protection Fund Authority

Chairperson CEO

Place: Delhi

Date:

Income and Expenditure Accounts For The Period/year Ended_____

[see rule 5]

(Amount - Rs)

Income

Schedule

Current Year

Previous Year

Income from sales/services

XII

Grants/Subsidies

XIII

Fees/Subscriptions

XIV

Income from Investments (Income on invest, from
earmarked/endow funds transferred to funds).

XV

Income from Royalty, Publications etc.

XVI

Interest Earned

XVII

Other Income

Increase/(Decrease) in stock of Finished goods
and Work in Progress

XVIII

XIX

Total (A)

Expenditure

Schedule

Current Year

Previous Year

Establishment Expenses

XX

Other Administrative Expenses, etc.

XXI

Expenditure on Grants, subsidies etc.

XXII

Interest

XXIII

Depreciation(Net Total at the year end)

XXIV

TOTAL (B)

Balance being excess of Income over Expenditure

(A-B) Transfer to Special Reserve (Specify each) Transfer to/from
General Reserve

Balance Being Surplus (Deficit) Carried To

Corpus/capital Fund

Significant Accounting Policies

XXV

Contingent Liabilities and Notes on Accounts

XXVI

Investor Education and Protection Fund AuthorityChairperson CEO

Place: Delhi

Date:

Forming Part of Balance Sheet As At 31at March 20.....

(see rule 5)

I

Corpus/ Capital Fund

(Amount - Rs.)

Current Year

Previous Year

Balance as at the beginning of the year

Add: Contributions towards Corpus/ Capital fund
 Add/(Deduct): Balance of net income/
 (expenditure) transferred from the Income and Expenditure Account
 Balance As At The Year -End

II

Reserves and Surplus

(Amount - Rs.)

Current Year

Previous Year

1. Capital Reserve

(i) As per last

Account

(ii) Addition during

the year

(iii) Less: Deductions during the year

2. Revaluation

Reserve

(i) As per last

Account

(ii) Addition during

the year

(iii) Less: Deductions during the year

3. Special Reserves

(i) As per last

Account

(ii) Addition during

the year

(iii) Less: Deductions during the year

4. General Reserve

(i) As per last

Account

(ii) Addition during

the year

(iii) Less: Deductions during the year

Total

III

Earmarked/endowment Funds

(Amount - Rs.)

Fund Break up

Totals

Fund

Fund

Current Year

Previous Year

a) Opening balance of the funds

b) Additions to the Funds:

(i) Donations/grants

(ii) Income from investments made on account of
 funds

(iii) Other additions (specify nature)

Total (a+b)

c) Utilisation/Expenditure towards objectives of funds

i) Capital

Expenditure -

Fixed Assets

- Others Total

ii) Revenue

Expenditure - Salaries, Wages and allowances etc.

- Rent

- Other Administrative

Expenses Total

Total (c)

Net Balance As At The Year-End (a + b - c)

Notes - (1) Disclosures shall be made under relevant heads based on conditions attaching to the grants.

(2)

Plan Funds received from the Central/State Governments are to be shown as separate Funds and not to be mixed up with any other Funds.

IV

Secured Loans and Borrowings

(Amount Rs.)

Current Year

Previous Year

1. Central Government

2. State Government (Specify)

3. Financial Institutions

a) Terms Loans

b) Interest accrued and due

4. Banks

a) Term Loans

- Interest accrued and due

b) Other Loans (specify)

- Interest accrued and due

5. Other Institutions and Agencies

6. Debentures and bonds

7. Others (Specify)

Total

Note: Amounts due within one year

V

Unsecured Loans And Borrowings

(Amount -Rs.)

Current Year

Previous Year

1. Central Government

2. State Government

3. Financial Institutions

4. Banks:

a) Term Loans

b) Other Loans (specify)

5. Other Institutions and Agencies

6. Debentures and Bonds

7. Fixed Deposits

8. Others (specify)

Total

Note: Amounts due within one year

VI

Deferred Credit Liabilities

(Amount - Rs.)

Current Year

Previous Year

1. Acceptances secured by hypothecation of capital equipment and other assets.

2. Others

Total

Note: Amounts due within one year

VII

Current Liabilities and Provisions

(Amount - Rs.)

Current Year

Previous Year

A. Current Liabilities

1. Acceptances

2. Sundry creditors:-

a. For Goods

b. Others

3. Advances Received

4. Interest accrued but not due on:

(a) Secured Loans/borrowings

(b) Unsecured Loans/borrowings

5. Statutory Liabilities:

(a) Overdue

(b) Others

6. Other Current Liabilities

Total (A)

B. Provisions

1. For Taxation

2. Gratuity

3. Superannuation/Pension

4. Accumulated Leave Encashment

5. Trade Warranties/Claims

6. Others (specify)

Total (B)

Total (A+B)

VIII

Fixed Asset

(Amount - Rs.)

Gross Block

Depreciation

Net Block

description

cost/valuation as at beginning of the year Rs.

additions during the year Rs.

deductions/adjustments during the year Rs.

cost/valuation as at beginning of the year Rs.

As at the beginning of the year Rs.

during the year

on deduction during the year Rs.

total up to the year end Rs.

as at the current year end

as at the previous year end

A. Fixed Assets

1. Land

a) Freehold

b) Leasehold

2. Buildings:

a) On Freehold Land

b) On Leasehold land

c) Ownership Flat / Premises

d) Superstructures on Land not belonging to the entity

3. Plant Machinery & Equipment

4. Vehicles

5. Furniture & Fixtures

6. Office Equipments

7. Computers / Peripherals

8 Electrical Installations

9 Library Books

10 Tube-wells & W Supply

11 Other Fixed Assets

Total Of Current Year

Previous Year Capital Work In

Progress Total

Total

Note to be given as to cost of assets on hire purchase basis included above.

IX

Investments From Earmarked/endowment Funds

(Amount - Rs.)

Current Year

Previous Year

1. In Government Securities

2. Other approved Securities

3. Shares

4. Debentures and Bonds

5. Subsidiaries and Joint Ventures

6. Others (to be specified)

Total

X

Investments - Others

(Amount - Rs.)

Current Year

Previous Year

1. In Government Securities

2. Other approved Securities

3. Shares

4. Debentures and Bonds

5. Subsidiaries and Joint Ventures

6. Others (to be specified)

Total

XI

Current Assets, Loans, Advances Etc.

(Amount - Rs.)

Current Year Rs.

Previous Year Rs.

Current Assets. Loans. Advances Etc.

A

Current Assets:

1. Inventories

(a) Stores and Spares

(b) Loose tools

(c) Stock-in-trade

Finished Goods

Work in Progress

Raw Material

(if not relevant nil may be written)

2. Sundry Debtors

a) Debts Outstanding for a period exceeding six months

b) Others

3. Cash balances in hand (including cheques/drafts and imprest)

4. Bank Balances :

With Scheduled Banks:

With Non Scheduled Bank

- In Current Accounts

- In Deposit Accounts (incl. margin money)

- On Savings Accounts

5. Post Office - Savings Accounts

TOTAL (A)

B

Loans, Advances And Other Assets

1. Loans to :

a) Staff

b) Other Entities engaged in activities/ objectives similar to that of the Entity

c) Other (specify)

2. Advances and other amount recoverable in cash or in kind or for value to be received:

a) On Capital Account

b) Prepayments

c) Others

3. Income Accrued

a) On Investments

from Earmarked/ Endowment Fund

b) On

Investments-others

c) On Loans and

Advances

d) Others (includes
income due unrealized Rs.)

4. Claims Receivable

TOTAL (B)

TOTAL (A+B)

Forming Part of Income and Expenditure for the Year Ended 31st march 20.....

XII

Income From Sales/ Services

Amount(Rs)

Current year

Previous Year

Income from sales

Income from services

XIII

Grants/subsidies

(Irrevocable Grants & Subsidies Received)

(Amount-Rs.)

Current Year

Previous Year

1) Central Government

2) State Government(s)

3) Government Agencies

4) Institutions/Welfare Bodies

5) International Organisations

6) Others (Specify)

Total

XIV

Fees/subscriptions

(Amount-Rs.)

Current Year

Previous Year

1) Entrance Fees

2) Filing Fees

3) Seminar/Programme Fees

4) Consultancy Fees

5) Others T (Specify)

TOTAL

Note - Accounting Policies towards each item are to be disclosed

XV

Income From Investments

(Income on Invest. From Earmarked/Endowment Funds transferred to Funds)

(Amount-Rs.)

1) Interest

a) On Govt. Securities

Investment from Earmarked Fund

Investment - Others

Current Year

Previous Year

Current Year

Previous Year

b) Other Bonds/Debentures
 2) Dividends
 a) On Shares
 b) On Mutual Fund Securities
 3) Rents
 4) Others (Specify)
 Total
 Transferred to Earmarked/Endowment Funds
 XVI
 Income From Royalty, Publication Etc.
 (Amount-Rs.)
 Current Year
 Previous Year
 1) Income from Royalty
 2) Income from Publications
 3) Others (Specify)
 Total
 XVII
 Interest Earned
 (Amount-Rs.)
 1) On Term Deposits:
 Current Year
 Previous Year
 a) With Scheduled Banks
 b) With Non-Scheduled Banks
 c) With Institutions
 d) Others
 2) On Savings Accounts:
 a) With Scheduled Banks
 b) With Non-scheduled Banks
 c) Post Office Savings Accounts
 d) Others
 3) On Loans:
 a) Employees/Staff
 b) Others
 4) Interest on Debtors and Other Receivables
 Total
 Note - Tax deducted at source to be indicated
 XVIII
 Other Income
 (Amount-Rs.)
 1) Profit on
 Sale/disposal of Assets:
 a) Owned assets
 b) Assets acquired
 out of grants, or received free of cost
 2) Fees for
 Miscellaneous Services
 3) Miscellaneous
 Income
 Total

Current Year

Previous Year

XIX

Increase/(Decrease) in Stock of Finished Goods and Work in Progress

Amount (Rs)

Current year

Previous Year

Income from sales

Income from services

XX

Establishment Expenses

(Amount-Rs.)

Current Year

Previous Year

a) Salaries and Wages

b) Allowances and Bonus

c) Contribution to Provident Fund

d) Contribution to Other Fund (specify)

e) Staff Welfare Expenses

f) Expenses on Employees' Retirement and

Terminal Benefits

g) Others (specify)

Total

XXI

Other Administrative Expenses Etc.

(Amount-Rs.)

Current Year

Previous Year

a) Purchases

b) Labour and processing expenses

c) Cartage and Carriage Inwards

d) Electricity and power

e) Water charges

f) Insurance

g) Repairs and Maintenance

h) GST

i) Rent, Rates and Taxes

j) Vehicles Running, Maintenance or Hiring

charges

k) Postage, Telephone and Communication Charges

l) Printing and Stationery

m) Travelling and Conveyance Expenses

n) Expenses on Seminar/Workshops

o) Subscription Expenses

p) Expenses of Fee

q) Auditors Remuneration/Legal Fee

r) Hospitality Expenses

s) Professional Charges

t) Provision for Bad and Doubtful Debts/Advances

u) Irrecoverable Balances return off

v) Packing Charges

- w) Freight and Forwarding Expenses
- x) Distribution Expenses
- y) Advertisement and Publicity
- z) Others (to be specified)

Total

XXII

Expenditure on Grants, Subsidies Etc.

(Amount - Rs.)

Current Yea

Previous Year

a) Grants given to Institutions/Organisations

b) Subsidies given to Institutions/Organisations

Total

Note : Name of the Entities, their Activities along with the amount of Grants/subsidies are to be disclosed.

XXIII

Interest

(Amount - Rs.)

Current Year

Previous Year

(a) On Fixed Loans

(b) On Other Loans (including Bank Charges)

(c) Others (specify)

Total

XXIV

Depreciation (Total at the Year End)

(Amount - Rs.)

Current Year

Previous Year

(a) On Fixed ASSETS

(b) On Movable Assets

(c) Others (specify)

Total

Forming Part of the Accounts for the Year Ended 31st March, 20.....

XXV

Significant Accounting Policies (Illustrative)

1. Accounting Convention. - The financial statements are prepared on the basis of historical cost convention, unless otherwise stated and on the accrual method of accounting.

2. Investments. - 2.1 Investments classified as "long term investments" are carried at cost. Provision for decline, other than temporary, is made in carrying cost of such investments.

2.2

Investments classified as "Current" are carried at lower of cost and fair value. Provision for shortfall on the value of such investments is made for each investment considered individually and not on a global basis.

2.3

Cost includes acquisition expenses like brokerage, transfer stamps.

3. Fixed Assets. - 3.1 Fixed Assets are stated at cost of acquisition inclusive of inward freight, duties and taxes and incidental and direct expenses related to acquisition. In respect of projects involving construction, related pre-operational expenses (including interest on loans for specific project prior to its completion), form part of the value of the assets capitalized.

3.2

Fixed Assets received by way of non-monetary grants, (other than towards the Corpus Fund), are capitalized at values stated, by corresponding credit to Capital Reserve.

4. Depreciation. - 4.1 Depreciation is provided on straight-line method as per rates specified in the Income-tax Act, 1961 except depreciation on cost adjustments arising on account of conversion of foreign currency liabilities for acquisition of fixed assets, which is amortized over the residual life of the respective assets.

4.2

In respect of additions to/deductions from fixed assets during the year, depreciation is considered on pro-rata basis.

4.3

Assets consisting Rs.5,000 or less each are fully provided.

5. Miscellaneous Expenditure. - Deferred revenue expenditure is written off over a period of 5 years from the year it is incurred.

6. Accounting For Sales. - Sales include excise duty and are net of sales returns, rebate and trade discount.

7.

Government Grants/subsidies. - 7.1 Government grants of the nature of contribution towards capital cost of setting up projects are treated as Capital Reserve.

7.2

Grants in respect of specific fixed assets acquired are shown as a deduction from the cost of the related assets.

7.3

Government grants/subsidy are accounted on realization basis.

8.

Foreign Currency Transactions. - 8.1 Transactions denominated in foreign currency are accounted at the exchange rate prevailing at the date of the transaction.

8.2

Current assets, foreign currency loans and current liabilities are converted at the exchange rate prevailing as at the year end and the resultant gain/loss is adjusted to cost of fixed assets, if the foreign currency liability related to fixed assets, and in other cases is considered to revenue.

9.

Lease. - Lease rentals are expensed with reference to lease terms.

10.

Retirement Benefits. - 10.1 Liability towards gratuity payable on death/retirement of employees is accrued based on actuarial valuation.

10.2

Provision for accumulated leave encashment benefit to the employees is accrued and computed on the assumption that employees are entitled to receive the benefit as at each year end.

XXVI

Contingent Liabilities And Notes On Accounts (Illustrative)

1. Contingent Liabilities. - 1.1 Claims against the Entity not acknowledged as debts - Rs. _____
(Previous year Rs. _____)

1.2

In respect of:

- Bank guarantees given by/on behalf of the Entity -Rs. _____ (Previous year Rs. _____).

- Letters of Credit opened by Bank on behalf of the Entity -Rs. _____ (Previous year Rs. _____).

- Bills discounted with banks Rs. _____ (Previous year Rs. _____).

1.3

Disputed demands in respect of:

1.4

In respect claims from parties for non-execution of orders, but contested by the Entity - Rs. _____ (Previous year Rs. _____).

2. Capital Commitments. - Estimated value of contracts remaining to be executed on capital account and not provided for (net of advances) Rs. (Previous year Rs. _____).

3. Lease Obligations. - Future obligations for rentals under finance lease arrangements for plant and machinery amount to Rs. _____ (Previous year Rs. _____).

4. Current Assets, Loans And Advances. - In the opinion of the Management, the current assets, loans and advances

have a value on realization in the ordinary course of business, equal at least to the aggregate amount shown in the Balance Sheet.

5. Taxation. - In view of there being no taxable income under Income-tax Act 1961, no provision for Income tax has been considered necessary.

Current Year Previous Year

6. Foreign Currency Transactions. - 6.1 Value of Imports calculated on C.I.F Basis:

- Purchase of finished Goods
- Raw Materials & Components (Including in transit)
- Capital Goods
- Stores, Spares and Consumables

d) Travel

e) Remittances and Interest payment to Financial Institutions/ Banks in Foreign Currency

f) Other expenditure:

- Commission on Sales
- Legal and Professional Expenses
- Miscellaneous Expenses

Earnings:

Value of Exports on FOB basis

Remuneration to auditors:

As Auditors

- Taxation matters
- For Management services
- For certification

6.2

Expenditure in Foreign Currencies.

Others

7. Corresponding figures for the previous year have been regrouped/ rearranged, wherever necessary.

8. Schedules I to XXIII are annexed to and form an integral part of the Balance Sheet as at _____ and the Income and Expenditure Account for the year ended on that date.

Related AI tags, queries and research notes

Translation